

7. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Matthew C. Materazo's ("Defendant") Motion for Judgement on the Pleadings.

As explained below, **Defendant's MJOP is taken off the Court's law and motion calendar.**

Meet and Confer

Before filing a motion for judgment on the pleadings, "the moving party shall meet and confer **in person, by telephone, or by video conference**," with the party that filed the pleading at issue. (Cal. Code Civ. Proc. § 439 (a) emphasis added.) The meet and confer shall take place at least 5 days before filing the motion. (*Id.* at (a)(2).) The moving party shall file and serve with the motion a declaration stating either that (1) the parties met and conferred and could not reach agreement, or (2) the party that filed the pleading failed to respond to the meet and confer request and/or failed to meet and confer in good faith. (*Id.* at (a)(3).)

Here, the Court continued this motion as a courtesy to provide Defendant additional time to comply with the meet and confer statute on its tentative ruling for the October 3, 2025, hearing. Defendant has ignored this Court's order and has yet to file any declaration attesting to any effort to meet and confer efforts for this motion, as required by statute. The meet and confer requirements are mandatory and must be complied with in good faith, and Defendant has failed to comply despite additional time and a court order. (CCP § 439 (a)(2).)

The Court's docket is busy, and the Court views the situation as unfair to allow Defendant to perpetually take a spot on its calendar while litigants who comply with applicable statutes and court orders are made to wait, given that Defendant ignores mandatory statutory requirements and court orders to meet and confer.

Conclusion

As provided above, **Defendant's MJOP is taken off the Court's law and motion calendar.**

8. 9:00 AM CASE NUMBER: C24-03031
CASE NAME: ISIDRO MYRICK-BUSTOS VS. STARS BEHAVIORAL HEALTH GROUP, INC.
MOTION TO STRIKE 1ST AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Granted. Parties stipulate to strike portions of the first amended complaint.